



EVL1 — Introduction to Evidence and Proof

Module 7 — Presumptions

Lesson 2: Presumptions in Practice

Student Lesson Notes

PRESUMPTION OF INNOCENCE

Presumption of Innocence: Every person charged with a criminal offence is presumed innocent until proved guilty. It is simultaneously a presumption, a rule about burden of proof, and a constitutional guarantee.

Article 28(3)(a), Constitution of Uganda 1995: Every person charged with a criminal offence shall be presumed innocent until proved guilty or until that person has pleaded guilty.

Practical Consequences

- The burden of proof lies on the prosecution — because the accused is presumed innocent, it falls on the prosecution to prove guilt.
- The accused is entitled to the benefit of the doubt — if any reasonable doubt remains, the accused must be acquitted.
- The beyond reasonable doubt standard follows directly — only the highest standard of proof can displace the constitutional presumption.

Rebuttable — But Only One Way

The presumption of innocence is rebuttable — but ONLY by the prosecution proving guilt beyond reasonable doubt. It cannot be rebutted by suspicion, probability, or balance of probabilities. Only the highest evidential standard displaces it.

Woolmington v DPP [1935] AC 462 — *persuasive Commonwealth authority* — The golden thread: the prosecution bears the burden of proving the prisoner's guilt throughout criminal law. The accused bears no burden to prove innocence.

Akbar Hussein Godi v Uganda *Criminal Appeal No. 3 of 2013, Supreme Court* — Set aside a conviction where the trial court effectively reversed the presumption by treating the accused's failure to explain suspicious circumstances as establishing guilt.

Ntambala v Uganda *Criminal Appeal No. 34 of 2015, Court of Appeal* — Reiterated that the burden throughout lies on the prosecution — guilt must be proved, not merely made probable.

PRESUMPTION OF DEATH

Section 107, Evidence Act Cap. 8: When the question is whether a person is alive or dead, and it is proved that they have not been heard of for seven years by those who would naturally have heard of them if alive, the burden of proving they are alive is shifted to the person who affirms it.

Primary Fact vs Presumed Fact

Primary Fact: The person has not been heard of for seven years by those who would NATURALLY have had contact — family members, employers, close friends, neighbours. Not random persons.

Presumed Fact: The person is dead — allowing the estate to be administered, marriages to be dissolved, and other legal consequences of death to follow.

Importance in Ugandan Practice

- Succession matters: a missing heir must be presumed dead before their share can be distributed.
- Matrimonial matters: a spouse absent for the required period may be presumed dead allowing the surviving spouse to remarry.
- Insurance claims: death must be established and the presumption provides a pathway where direct proof is impossible.

Rebutting the Presumption

The presumption of death can be rebutted by any credible evidence that the person is alive — a letter, a witness who has recently seen them, phone records showing communication. The standard is adducing sufficient credible contrary evidence.

Section 108, Evidence Act Cap. 8: Where two persons die in a common disaster, there is no presumption about the order of death. Relevant in disaster cases and determines who inherits from whom.

OTHER KEY PRESUMPTIONS UNDER THE EVIDENCE ACT CAP. 8

Books of Account: Books of account regularly kept in the course of business are presumed correct as to entries made in the ordinary course of business. Rebuttable by evidence of fraud, error, or irregular record-keeping.

Old Documents from Proper Custody: Documents purporting to be old and produced from proper custody are presumed genuine and properly executed without requiring further proof. Relevant in Ugandan land disputes involving old title documents.

Presumption of Legitimacy: A child born during a lawful marriage is presumed to be the legitimate child of the husband. Rebuttable by evidence of non-access during conception. Has significant consequences for inheritance rights under the Succession Act Cap. 268.

Presumption of Regularity: *Omnia praesumuntur rite esse acta* — all things are presumed to be properly done. Official and judicial acts are presumed to have been done properly and within authority. Rebuttable by evidence of irregularity or excess of authority.

Electronic Records: Where an electronic record is produced in prescribed form with required certification under Electronic Transactions Act Cap. 99 and Electronic Signatures Act Cap. 98, it may be presumed accurate and authentic. Rebuttable by evidence of tampering or system failure.

LESSON SUMMARY — KEY POINTS

- ✓ Presumption of innocence: every accused is presumed innocent until proved guilty — constitutional guarantee under Article 28(3)(a)
- ✓ Rebuttable only by proof beyond reasonable doubt — suspicion or balance of probabilities is insufficient
- ✓ *Woolmington v DPP* [1935] AC 462: the golden thread — persuasive authority; *Akbar Hussein Godi v Uganda* CA No. 3 of 2013; *Ntambala v Uganda* CA No. 34 of 2015
- ✓ Presumption of death — Section 107 Evidence Act Cap. 8: seven years absence without news from those who would naturally have heard
- ✓ Section 108: no presumption of order of death where two persons die in a common disaster
- ✓ Presumption of legitimacy: child born in lawful marriage presumed legitimate — rebuttable by non-access evidence
- ✓ Presumption of regularity: *omnia praesumuntur rite esse acta* — official acts presumed properly done — rebuttable
- ✓ Electronic records: authenticity presumed when properly certified under Electronic Transactions Act Cap. 99

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

File: [KMVEDU-EVL1-M7-L2-PresumptionsInPractice.pdf](#)

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1. State the constitutional provision guaranteeing the presumption of innocence in Uganda and explain its practical consequences.
2. Can the presumption of innocence be rebutted? If yes, how? If no, why not?
3. State the primary fact that triggers the presumption of death under Section 107 of the Evidence Act Cap. 8.
4. What does Section 108 of the Evidence Act Cap. 8 provide about two persons dying in a common disaster?
5. Explain the presumption of regularity using a Ugandan land case example.